

Naresh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 January 2015 · Criminal Misc. Writ Petition No. 164 of 2015 · **FIR quash refused; petition disposed with CrPC arrest safeguards and compounding left to the Supply Code.**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed in writ jurisdiction. Where the alleged offence cannot entail a sentence of more than seven years, any arrest must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Naresh approached the Allahabad High Court to quash FIR dated 26 February 2014, registered as Case Crime No. 151 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Kotwali City, District Bijnor. He had not been arrested. Counsel submitted that the alleged offence could not attract a sentence of more than seven years, so arrest should not be mechanical, and that the offence was also compoundable. The State appeared through the Government Advocate.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash, arrest safeguards and compounding

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not quashed. Arrest, if to be effectuated for an offence not entailing a sentence of more than seven years, must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek the compounding remedy under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED SECTION 135 OFFENCE IS IN FACT COMPOUNDABLE, AND ANY COMPOUNDING ON THE MERITS

The Court only observed that if the offence is compoundable the petitioner may seek the Supply Code, 2005 remedy. ¶ 1